

22STCV24750 22STCV24750

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-01

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Case Number: 22STCV24750 Hearing Date: September 1, 2026 Dept: 512

HEARING DATE: Tues., September 1, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Abhari,

et al. v. Farmers Ins. Exchange et al.

CASE NUMBER: 22STCV24750/23STCV03400

NOTICE: NO

PROCEEDINGS: MOTION

FOR LEAVE TO INTERVENE

MOVING PARTY: Non-Party

Farmers Insurance Exchange

RESP. PARTY: Plaintiff Zia Abhari

MOTION TO INTERVENE

(CCP § 387)

TENTATIVE RULING:

Non-Party Farmers Insurance Exchange's
Motion for Leave to Intervene is GRANTED.

Moving party is to file a responsive
pleading within the next 10 days.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely
Filed (CRC, rule 3.1300) NO

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) NO

OPPOSITION: Filed
on August 17, 2026 ☐
Late ☐ None

REPLY: Filed
on August 25, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On February 5, 2025, Farmers Insurance Exchange ("Farmers Insurance") was dismissed from both Case Nos. 22STCV24750 and 23STCV03400.

On July 16, 2026, default was entered against Defendant Bacon-Up Corporation ("Bacon-Up").

On August 13, 2026, Non-Party Farmers Insurance filed the instant Motion for Leave to Intervene (the "Motion").

On August 17, 2026, Plaintiff Zia Abhari ("Plaintiff") filed an Opposition.

On August 25, 2026,
Farmers Insurance filed a Reply.

On
August 26, 2026, Plaintiff filed an Objection to the Reply.

II.
Procedural
Issues

As an initial matter, the Court finds the Motion was
filed and served one day late pursuant to Code of Civil Procedure section 1005
and 1010.6. However, given the timely Opposition that addresses the Motion on
the merits, the Court exercises its discretion to address the Motion on the
merits despite Plaintiff's objection.

Additionally, the Court finds there
are no specific evidentiary objections for the Court to rule on in Plaintiff's
Objection to the Reply. Rather, the Objection merely reiterates arguments
raised in the Opposition.

III.
Legal
Standard

Code of Civil Procedure, section 387,
subdivisions (c) and (d) provide:

(c) A nonparty shall petition the
court for leave to intervene by noticed motion or ex parte application. The
petition shall include a copy of the proposed complaint in intervention or
answer in intervention and set forth the grounds upon which intervention rests.

(d) (1) The court shall, upon
timely application, permit a nonparty to intervene in the action or proceeding
if either of the following conditions is satisfied:

(A) A provision of law confers an
unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

(Code Civ. Proc.,
§ 387, subds. (c), (d).)

Whether the petitioner has an interest in the matter in litigation is a question of fact that must be determined by the court before leave to file is granted. (See *Muller v. Robinson* (1959) 174 Cal.App.2d 511, 515.) The burden rests on the one seeking to intervene to show that this is a proper case for intervention. (*Id.*, at p. 515.)

IV.

Discussion

Farmers Insurance provides evidence stating that it has a direct interest in the action given that it formerly insured Bacon-Up, and Bacon-Up "is dissolved and therefore ... it cannot defend itself." (Motion, p. 3, Collins Decl., ¶ 3.) "Given that Plaintiff seeks an entry of default against Bacon-Up, [Farmers Insurance] therefore seeks leave of court to intervene and defend both its interests as well as those of Bacon-Up, it's insured, both of which would be adversely affected if [Farmers Insurance is] not provided leave to intervene." (Motion, Collins Decl., ¶ 3.)

In Opposition, Plaintiff contends

Farmers Insurance is attempting to "illegally obstruct the entry of a default judgment that is about to be entered" against Bacon-Up and attempt to prematurely raise coverage defenses against Plaintiff. (See Opp., pp. 5-7.) Plaintiff states that Farmers Insurance must first satisfy the requirement of

Revenue and Taxation Code section 19719(b) prior to moving to intervene (Motion, pp. 5-6), and Plaintiff refutes potential challenges and defenses Farmers Insurance will make as to service on Bacon-Up and/or Bacon-Up's status in this action. (Motion, pp. 6-7.) Finally, Plaintiff states the actions Plaintiff plans to take in the action regarding Bacon-Up. (Motion, pp. 7-8.) These arguments are emphasized in the Objection to the Reply as well.

In Reply, Farmers Insurance emphasizes arguments raised in the Motion and refutes Plaintiff's erroneous assertion that Farmers Insurance is attempting to "exempt itself from criminal penalties pursuant to Revenue and Taxation Code Section 19719(b)." (Reply, pp. 2-3, 5.) Further, Farmers Insurance disputes Plaintiff's use and interpretation of certain case law in the instant matter. (Reply, pp. 4-5.)

Here, Farmers Insurance has an interest in the outcome of this action because it insures Bacon-Up and will face direct liability if it is not permitted to intervene. (See *Reliance Ins. Code v. Superior Court* (2000) 84 Cal.App.4th 383, 386 ["An insurer's right to intervene in an action against the insured, for personal injury or property damage, arises as a result of Insurance Code section 11580. Section 11580 provides that a judgment creditor may proceed directly against any liability insurance covering the defendant, and obtain satisfaction of judgment up to the amount of the policy limits"].) Farmers Insurance represents that Bacon-Up is a dissolved entity who is not defending this action, which thus necessitated the instant Motion, and such circumstances are permissible grounds on which to grant a motion to intervene. (See *id.*, at p. 387.) Finally, the Motion is timely as default judgment has not yet been entered against Bacon-Up. (See *id.*, at pp. 386-387 ["[W]here the insurer may be subject to a direct action under Insurance Code section 11580 by a judgment creditor who has or will obtain a default judgment in a third party action against the insured, intervention is appropriate"].)

To the extent Plaintiff raises Revenue and Taxation Code section 19719(b) as prohibitive of Farmers Insurance's intervention, the Court finds this assertion is refuted by the statute itself. Indeed, Revenue and Taxation Code section 19719(b) states that the fine or imprisonment referenced in subdivision (a) does "not apply to any insurer, or to counsel retained by an insurer on behalf of the suspended corporation, who provides a defense for a suspended corporation in a civil action based upon a claim for personal injury, property damage, or economic losses against the

suspended corporation, and, in conjunction with this defense, prosecutes subrogation, contribution, or indemnity rights against persons or entities in the name of the suspended corporation." Here, Farmers Insurance is an insurer providing a defense to dissolved Bacon-Up in a civil action upon a claim for permissible damages by the statute and is moving to intervene on behalf of the dissolved Bacon-Up. Thus, Revenue and Taxation Code section 19719(b) does not require the Court to deny the instant Motion.

As to Plaintiff's contentions that Farmers Insurance's potential future arguments for and defenses of Bacon-Up warrant denial of the Motion, the Court does not find these arguments to be relevant or persuasive to the determination of the Motion. Plaintiff fails to provide any legal authority mandating the Court determine otherwise.

V.

Conclusion

& Order

For the foregoing reasons, Non-Party

Farmers Insurance Exchange's Motion for Leave to Intervene is GRANTED. Moving party is to file a responsive pleading within the next 10 days.

Moving

party is ordered to give notice.